

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 2155 of 2015

Md. Jan Box and others.

----- Defendant appellant-petitioners

=Versus=

Md. Mobarok and others

----- Plaintiff-respondent-opposite-parties

Mr. Md. Jahangir Alom, Advocate

----- For the petitioners.

Mr. A.B.M. Motiur Rahman, Advocate

----- For the opposite-party No.1

Mr. Mahbubey Alam, Attorney General with

Mrs. Shahida Khatoon, A.A.G.

----- For the opposite-party Nos.2-5.

Heard on 05.02.2017 and

Judgment on 08.03.2017

At the instance of the present defendant-appellant-petitioners, Md. Jan Box and others, this Rule has been issued calling upon the opposite-parties to show cause as to why the order dated 27.04.2015 passed by the learned Additional District Judge, 2nd Court, Dhaka in Title Appeal No.120 of 2011 rejecting the application under Order 6 Rule 17 of the Court of Civil Procedure filed by the plaintiff-appellant for amendment of the plaint should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite-party No.1as the plaintiffs filed the Title Suit No.5855 of

2008 in the Court of the learned District Judge, Dhaka for declaration of title and also for cancellation of sale deed No.5865 dated 19.04.1972.

The plaint case in short is that the land described in the plaint of originally owned by one Emarot Sheikh and the record was published accordingly, but he died before marriage. The said land was succeeded by his full brother Ukil Uddin, who died leaving behind his wife Sonai Bibi and 2 sons Ali Ashraf and Nur Mohammad. Their successors subsequently sold the land to the different persons. Accordingly .17 acres was sold to the original plaintiff of the Suit No.5855 of 2008 and other different measurement of land were sold to the present defendant-petitioner Nos.1, 2 and 3. The present plaintiff came to know that the land measuring .17 acres was transferred by Md. Abdul Majid to Ibrahim Miah and the said Ibrahim Miah sold land to the present defendant No.1-petitioner, Jan Box through deed No.5865 dated 19.04.1972 and R.S. record was published in his name. The present defendant-petitioner contested the suit by filing a written statement denying the statements made in the plaint. It is further contended that the suit land was originally owned by one Emarot Sheikh and the record of right was published in his name properly in the C.S. record. There are litigations regarding the said suit land. The suit land was transferred by Ukil Uddin and lastly the land was transferred by one Abdul Hye in favour of Abdul Majid Miah vide Deed No.1449 dated 02.03.1961 who thereafter

sold to one Ibrahim Miah and thereafter Ibrahim Miah sold to the present defendant-petitioner No.1.

After hearing the parties the learned Assistant Judge Court No.3, Dhaka decreed the suit by his judgment and decree dated 28.02.2011. Being aggrieved the present petitioner as the appellant preferred the Title Appeal No.120 of 2011 in the Court of the learned District Judge, Dhaka. While this appeal has been pending the present petitioner filed an application for amendment of written statements under Order 6 Rule 17 read with section 151 of the Code of Civil Procedure. The learned Additional District Judge, Court No.2, Dhaka on transfer rejected the application filed under Order 6 Rule 17 of the Code of Civil Procedure by his order dated 27.04.2015. This revisional application has been filed challenging the said order of rejection by the appellate Court below and the Rule was issued thereupon.

This matter has been appearing in the list for a long period of time but none appears to support this Rule for a long period of time. In this revisional application, the petitioner has taken up a ground that the settle principle of law is that if the nature and character of the case is changed then the amendment application is not sustainable but this application for amendment would not change the nature and character and as such the learned Court below misinterpretation of law and did not consider the

evidence on record and as a result there is a serious miscarriage of justice, as such, the impugned order is liable to be set aside.

The Rule has been opposed by the present opposite-parties.

Mr. A.B.M Matiur Rahman, the learned Advocate appearing for the opposite-party No.1 submits that the present opposite-party No.1 as the plaintiff filed the Title Suit for declaration of title and cancellation of the deed dated 19.04.1972. After hearing the parties and considering the evidence produced and adduced by the parties the learned trial Court decreed the suit and the present defendant-petitioner preferred an appeal which is pending for disposal and the appeal was heard in length, but the application under Order 6 Rule 17 of the Code of Civil Procedure has been filed to amend the written statement originally filed in the trial Court after long lapse of time, therefore, the learned appellate Court below rejected the application clearly finding that this application has been filed only to delay and frustrated the entitlement of the present plaintiff-opposite-parties, as such the Rule is liable to be discharged.

Mrs. Shahida Khatoon, the learned Assistant Attorney General, appearing on behalf of the opposite-party Nos.2-5, the Government, submits that the learned trial Court decreed the suit on contest, but the present defendant-petitioner filed an application under Order 6 Rule 17 of the Code of Civil Procedure for amendment of the written statement filed with a mala-fide intention in order to delay of the conclusion of the suit,

therefore, the learned appellate Court below lawfully rejected the application and the present-petitioner obtained the present Rule by misleading the Court, as such the Rule should be discharged.

Considering the above submissions made by the learned Advocates for the opposite-parties and also considering the revisional application filed under section 115(1) of the Code of Civil Procedure along with annexures therein, in particular, the impugned judgment and order dated 27.04.2015 and also considering the lower Court records, it appears to me that the original title suit was filed by the present opposite-party No.1 claiming a declaration for title upon the suit land mentioned in the plaint and also for cancellation of the sale deed dated 19.04.1972. It further appears that the said suit was decreed on 28.02.2011. The Title Appeal No.120 of 2011 has been filed by the present defendant-petitioner challenging the aforementioned decree. While this appeal has been pending the present petitioner filed an application under Order 6 Rule 17 of the Code of Civil Procedure amendment of the written statement.

The present petitioner as the defendant filed the written statement controverting in details the claims made by the present plaintiff-opposite-parties. The defendant had an ample opportunity to bring any amendment required during pendency of the suit, if, and only if, such an amendment would not change the nature and character of the facts in issue in the said suit. It appears that the preset petitioner failed to bring any application for

an amendment of the written statement. On the basis of the pleadings of both the parties the evidences were considered by the trial Court and the suit was decreed.

In the title appeal filed in the year of 2011 but this application under Order 6 Rule 17 read with section 151 of the Code of Civil Procedure filed on 27.04.2015 in order to bring some changes regarding the defect of parties as well as for exclusion and inclusion of the parties. The application also contains the sale deed under challenge by the present plaintiff-opposite-parties being Registered Deed No.5865 in order to include parties of the said deed.

I have carefully considered the application made under Order 6 Rule 17 of the Code of Civil Procedure and I consider that a defect of parties and matter of necessary parties are matter of merit of any suit. Moreover, any amendment of the written statement must be done on an earliest opportunity during the trial of a suit. Order 6 Rule 17 of the Code of Civil Procedure has been amended by inserting the following provision:-

“Amendment of pleadings: The Court may at any stage of the proceedings allow either party to alter or amend his pleadings in such manner and on such terms as may be just, and all such amendments shall be made as may be necessary for the purpose of determining the real questions in controversy between the parties.

Provided that no application for amendment shall be allowed after the trial has commenced, unless the Court is of

opinion that in spite of due diligence, the party could not have raided the matter before the commencement of trial.

Provided further that if an application for amendment is made after trial has commenced and the Court is of opinion that the application is made to delay the proceedings, the Court shall make an order for the payment to the objectors such cost by way of compensation as it thinks fit. ”

The above provisions of law requires any amendment must be sought after the commencement of trial submitted by way of pleading, which means, in an appeal an application for amendment of written statement should not be entertained. I am of the opinion that this provision restricts a party from making an application for amendment of a written statement at the appeal would be fair, because the trial Court could not have an opportunity to consider any change in pleading by amendment before reaching his or her findings. In the instant case it appears that the present defendant-petitioner filed several other applications in the trial Court as well as in the appellate Court below in order to delay the conclusion of hearing of the appeal which is not desirable and acceptable from the learned Advocate appearing for the present petitioner. I have also noticed that the present petitioner obtained the Rule in the matter on 23.07.2015 but remained absente during the hearing of this Rule, even though it was fixed for hearing at the instant of the learned Advocate Md. Jahangir Alam appearing for the petitioner.

I have carefully examined the impugned order passed by the learned appellate Court below who came to a conclusion to reject the application on the basis of the following findings :-

“উভয়পক্ষের বিজ্ঞ কৌশলীর বক্তব্য শুনলাম। আপীল্যান্টপক্ষ দাখিলী আরজি সংশোধনের দরখাস্ত এবং তৎবিরুদ্ধে সেরপনডেন্ট পক্ষের দাখিলী লিখিত আপত্তি পর্যালোচনা করিলাম। আপীল্যান্টের দাখিলী দরখাস্ত ও নথি পর্যালোচনায় দেখা যায় তিনি Lacuna fill up করার জন্য অত্র সংশোধনী দরখাস্তটি আনয়ন করিয়াছেন। কেননা নথি দৃষ্ট দেখা যায় এই বিবাদী/আপীল্যান্টপক্ষ মূল মোকদ্দমার জবাব পক্ষাভাব বা অপপক্ষদ্বারা বিষয় উল্লেখ না করিয়া আপীল পর্যায়ে জবাব সংশোধন করিয়া বিষয়টি আনয়ন করিতে চাহিয়াছেন, যাহা আইন সমর্থন করি না। নথি পর্যালোচনায় আরও দেখা যায় গত ১০/১১/২০১৪ ইং তারিখে আপীল্যান্টপক্ষ অনুরূপ একটি দরখাস্ত দাখিল করিয়াছেন, যাহা অনিষ্পন্ন অবস্থায় নথিতে আছে। অত্র আপীল মোকদ্দমাটি ইতিপূর্বে অন্য আদালতে বিচারাধীন থাকাবস্থায় রায় এর পর্যায়ে ছিল। তখন হইতে আপীল্যান্টপক্ষ একের পর এক দরখাস্ত দাখিল করিয়া মোকদ্দমাটি নিষ্পত্তিতে বিলম্ব ঘটাইতে চেষ্টা করিয়াছেন। তাহাছাড়া আপীল আদালত Lacuna fill up করা যায় না”

In view of the above discussions, I consider that the learned appellate Court below committed no error of law by rejecting the application filed under Order 6 Rule 17 of the Code of Civil Procedure, because conduct of the present petitioner as the appellant and conduct of the learned Advocate are not desirable because the applications have been filed in order to delay the conclusion of the appeal and also in order to fill up lacuna or the defects in the case of the present petitioner. I am therefore, not inclined to interfere into the order passed by the learned appellate Court below.

Accordingly, I do not find merit in this Rule.

In the result, the Rule is discharged.

The interim order of stay granted at the time of issuance of the Rule upon the operation of the Title Appeal No.120 of 2011 is hereby recalled and vacated.

The learned Additional District Judge, Court No.2, Dhaka is hereby directed to conclude and finally decide the Title Appeal No.120 of 2011 within 3(three) months from the date of receipt of this judgment and order without allowing any unnecessary adjournment from either of the parties.

The office is directed to communicate this judgment and decree and also send down the lower courts records at once.